

No.DOPT-1675409362921
Government of India
Ministry of Personnel, Public Grievances & Pensions
Department of Personnel and Training
AVD(AVD-I/C-I)

North Block, New Delhi
Dated 03 February, 2023

OFFICE MEMORANDUM

Subject:- Reviewing of guidelines for timely disposal of departmental proceedings against the officers of All India Services posted on Central Deputation – reg

The undersigned is directed to refer to the subject cited above and to say that the timelines for departmental proceedings against the officers of All India Services posted on Central Deputation in respect of whom the proposals are received from concerned Ministries / Departments were last reviewed vide [DoPT's letter No. 106/7/2015-AVD.I \(Part\) dated 15/03/2017 \[copy enclosed\]](#) in amendment of All India Services (Discipline and Appeal) Rules, 1969.

2. In this context, with a view to streamline the processing of disciplinary proceeding cases, the following timelines have further been decided with the approval of the competent authority:

S. No.	Stages involved in Disciplinary proceedings cases	Time frame
1.	Receipt of the proposal from Ministry/Department for initiation of the Disciplinary Proceedings - Scrutiny of the proposal as per the requirements of Single Window System and decision as to whether to submit the matter for decision of Disciplinary Authority (DA) for initiation of the Disciplinary Proceedings case	21 working days
2.	After obtaining approval of the Disciplinary Authority (DA) and serving of the Charge Memorandum on the Charged Officer (CO), CO to submit his Written Statement of Defence (WSD), if any	Within the period of 30 days, extendable by another 30 days at a time and not exceeding 90 days from the date of receipt of the Charge Memorandum as per Rule 8(5) of AIS (D&A) Rules, 1969
3.	In case all the Charges levelled against the CO have been admitted by him, submission of the case records before the Disciplinary Authority for a tentative decision to impose a penalty and referring the matter to UPSC for statutory advice on the quantum of penalty to be imposed	14 working days
	OR	

	In case any or all the charges levelled against the CO have been denied by him, obtaining the para-wise comments of the concerned Ministry / Department along with the nomination of a suitable officer for the appointment as Presenting Officer	21 working days
4.	Examination of the para-wise comments of the Ministry / Department and submission of the matter before Disciplinary Authority for the appointment of Inquiry Authority / Presenting Officer	14 working days
5.	Issue of the Order for appointment of Inquiry Authority / Presenting Officer after receiving the approval of the DA	7 working days
6.	Conduct of Inquiry Proceedings by the Inquiry Authority and submission of his Report to the Department	Within 6 months, extendable by another 6 months at a time with the approval of DA and for the reasons to be recorded in writing by the Inquiry Authority as per Rule 8(25) (a), (b) & (c) of AIS (D&A) Rules, 1969
7.	Comments of the Concerned Department / Ministry on the Report of Inquiry Authority and submission of the Disagreement Note (reasons of disagreement), if any, on the Inquiry Report	14 working days
8.	After sharing the Inquiry Report and disagreement note, if any, CO to submit his written representation, if any	Within 15 working days, as per Rule 9(2) of AIS (D&A) Rules, 1969
9.	Comments of the concerned Department / Ministry on written representation of the CO	15 working days
10.	Submission of the matter before the Disciplinary Authority for approval / tentative decision on the Inquiry Report / Disagreement Note (if any) – on whether to impose a penalty or not and to refer the case records to the UPSC for their statutory advice	14 working days
11.	Submission of the case records to the UPSC for statutory advice after receiving the tentative decision / approval of the DA	7 working days
12.	After receiving the advice of UPSC and sharing the same with the CO, CO to submit his written representation, if any	Within 15 days, extendable by 15 days for reasons to be recorded in writing. Under no circumstances,

		the extension shall exceed 45 days from the date of receipt of the UPSC advice as stipulated in AIS (D&A) Rules, 1969
13.	Submission of the matter before the Disciplinary Authority for a final decision in the matter	14 working days
14.	Issue of the Final Order after receiving the approval of DA	7 working days

3. All Ministries / Departments are requested to ensure strict compliance of the above guidelines so that the disciplinary proceedings against the officers of All India Services may be processed in a time bound manner.

(Sign of Authority)

Manoj Gupta

Under Secretary to the Govt. of India

011-23040291

To,

- i. All Ministries / Departments as per standard list.
- ii. Prime Minister's Office.
- iii. Cabinet Secretariat.
- iv. Central Vigilance Commission.

Reference:

- i. [DoPT's Letter No. 106/7/2015-AVD.I\(Part\) dated 15/03/2017](#)
